EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 31139/10
Elvan BİLİCİ against Turkey
and 69 other applications
(see list appended)

The European Court of Human Rights (Second Section), sitting on 8 December 2015 as a Committee composed of:

Paul Lemmens, *President,*
Ksenija Turković,
Jon Fridrik Kjølbro, *judges,*

and Abel Campos, *Deputy Section Registrar,*

Having regard to the above applications lodged on the dates indicated in the appendix,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

A list of the applicants is set out in the appendix. They were all represented by Ms S. Karaduman, a lawyer practising in Ankara. The Turkish Government ("the Government") were represented by their Agent.

Relying on Articles 6, 11 and 13 of the Convention, applicants alleged that they were given a disciplinary penalty for taking part in a demonstration and complained further of a lack of a domestic remedy to challenge the impugned disciplinary measures.

On 5 August 2015 and 11 September 2015 the Court received friendly settlement declarations signed by the parties under which the applicants agreed to waive any further claims against Turkey in respect of the facts giving rise to these applications against an undertaking by the Government to pay *ex gratia* to each of them 500 euros (EUR) to cover any pecuniary

and non-pecuniary damage and EUR 4,700 for costs and expenses, which will be converted into national currency of the respondent State at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the cases.

THE LAW

Given that the applications at hand concern the same facts and complaints and raise identical issues under the Convention, the Court decides to join them, pursuant to Rule 42 § 1 of the Rules of the Court.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the applications. In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 7 January 2016.

Abel Campos	Paul Lemmens
Deputy Registrar	President

APPENDIX

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
1.	31139/10	14/04/2010	**Elvan BİLİCİ** 05/12/1962 Ankara	Sevgi KARADUMAN
2.	38624/10	31/05/2010	**Yusuf ŞENOL** 01/05/1964 Ankara	Sevgi KARADUMAN
3.	38933/10	31/05/2010	**Ayten KARAN ŞENOL** 19/08/1968 Ankara	Sevgi KARADUMAN
4.	48464/10	19/07/2010	**Pakize DEMİR** 20/10/1964 Ankara	Sevgi KARADUMAN
5.	51846/10	29/07/2010	**Yüksel KÖMÜRCÜ** 01/09/1964 Ankara	Sevgi KARADUMAN
6.	51851/10	29/07/2010	**İlhan SÖNMEZ** 04/01/1961 Ankara	Sevgi KARADUMAN
7.	54264/10	14/07/2010	**Mehmet YÜREKLİ** 16/08/1957 Ankara	Sevgi KARADUMAN
8.	55041/10	29/07/2010	**Gülseren ERDEM** 20/10/1964 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
9.	55172/10	29/07/2010	**Suna SAZLI** 21/10/1964 Ankara	Sevgi KARADUMAN
10.	55180/10	29/07/2010	**Gülay KOÇTÜRK** 03/01/1970 Ankara	Sevgi KARADUMAN
11.	55224/10	29/07/2010	**Uğur Ömer VARLIK** 13/01/1959 Ankara	Sevgi KARADUMAN
12.	58245/10	16/08/2010	**Sedrettin AYDEMİR** 01/01/1960 Ankara	Sevgi KARADUMAN
13.	58464/10	16/08/2010	**Haydar BİRSEN** 20/10/1954 Ankara	Sevgi KARADUMAN
14.	60038/10	07/09/2010	**Satı BURUNUCU ÇALI** 15/05/1969 Ankara	Sevgi KARADUMAN
15.	60054/10	07/09/2010	**Şenol ÇORUK** 17/09/1960 Ankara	Sevgi KARADUMAN
16.	60126/10	07/09/2010	**Alev TAŞDEMİR** 17/09/1977 Ankara	Sevgi KARADUMAN
17.	60197/10	07/09/2010	**Koray BEYDİL** 25/02/1978 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
18.	60201/10	07/09/2010	**Oktay ŞAHİN** 05/08/1968 Ankara	Sevgi KARADUMAN
19.	60242/10	07/09/2010	**Nurettin POLAT** 08/05/1964 Ankara	Sevgi KARADUMAN
20.	60267/10	07/09/2010	**Filiz KOÇAK DEMİR** 26/02/1977 Ankara	Sevgi KARADUMAN
21.	60888/10	29/07/2010	**Ersin ACARBAŞ** 01/01/1962 Ankara	Sevgi KARADUMAN
22.	61033/10	06/09/2010	**Hasan AYDIN** 13/08/1962 Ankara	Sevgi KARADUMAN
23.	61061/10	06/09/2010	**Abidin KABAK** 08/09/1964 Ankara	Sevgi KARADUMAN
24.	61185/10	07/09/2010	**Cengiz DOĞAN** 01/12/1959 Ankara	Sevgi KARADUMAN
25.	61240/10	07/09/2010	**Atılım AKBAŞ** 08/11/1978 Ankara	Sevgi KARADUMAN
26.	61243/10	07/09/2010	**Nurten ÇAKAN** 25/11/1959 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
27.	61267/10	07/09/2010	**Saniye KARAHAN** 05/02/1964 Ankara	Sevgi KARADUMAN
28.	61437/10	04/10/2010	**Nüsürettin EFE** 06/07/1966 Ankara	Sevgi KARADUMAN
29.	61516/10	29/07/2010	**Gülseren BOLATCAN** 15/02/1964 Ankara	Sevgi KARADUMAN
30.	61597/10	04/10/2010	**Tülin ÇELİKTEN** 19/01/1964 Ankara	Sevgi KARADUMAN
31.	61610/10	04/10/2010	**Zafer OTMAN** 30/08/1965 Ankara	Sevgi KARADUMAN
32.	61617/10	04/10/2010	**Sevgi KARACAOĞLAN** 26/07/1965 Ankara	Sevgi KARADUMAN
33.	61624/10	04/10/2010	**Aynur AYDIN** 07/02/1976 Ankara	Sevgi KARADUMAN
34.	61630/10	04/10/2010	**Cemal AYDIN** 05/03/1962 Ankara	Sevgi KARADUMAN
35.	61646/10	04/10/2010	**Kemal BORAN** 26/11/1964 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
36.	61655/10	04/10/2010	**Hatice KAHRAMAN** 30/06/1969 Ankara	Sevgi KARADUMAN
37.	61677/10	04/10/2010	**Nejla ARTUÇ** 17/09/1972 Ankara	Sevgi KARADUMAN
38.	61731/10	04/10/2010	**Ertuğrul KAVRAZLI** 28/01/1961 Ankara	Sevgi KARADUMAN
39.	61749/10	04/10/2010	**Hasan Hüseyin SEVGİ** 01/06/1962 Ankara	Sevgi KARADUMAN
40.	61753/10	04/10/2010	**Semra FİDAN** 08/12/1965 Ankara	Sevgi KARADUMAN
41.	61776/10	04/10/2010	**Dilek ARDIÇ** 05/07/1969 Ankara	Sevgi KARADUMAN
42.	62049/10	24/09/2010	**Deniz BAZ AKYILDIZ** 02/11/1974 Ankara	Sevgi KARADUMAN
43.	62591/10	04/10/2010	**Erkan ULAŞAN** 10/09/1956 Ankara **Özlem KELEŞ** 05/09/1979 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
			Kaya ŞİMŞEK 10/01/1966 Ankara **Nur KAVRAZLI** 19/05/1976 Ankara **Rıza ATES** 10/04/1966 Ankara **Züleyha KÜÇÜK** 31/01/1956 Ankara	
44.	62618/10	24/09/2010	**Burhan POSHOROĞLU** 01/08/1971 Ankara	Sevgi KARADUMAN
45.	62759/10	11/10/2010	**Eylem SAYKAN** 19/06/1978 Ankara	Sevgi KARADUMAN
46.	62775/10	11/10/2010	**Cemal GÜVENBAŞ** 01/01/1965 Ankara	Sevgi KARADUMAN
47.	62876/10	08/10/2010	**Nurten YILDIRIM** 05/06/1963 Ankara	Sevgi KARADUMAN
48.	63806/10	17/09/2010	**Nihat AKSOY** 13/03/1959 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
49.	63949/10	24/09/2010	**Yeter AYTAÇ** 01/06/1966 Ankara	Sevgi KARADUMAN
50.	63954/10	24/09/2010	**Musa YAKUT** 01/01/1962 Ankara	Sevgi KARADUMAN
51.	64071/10	24/09/2010	**Nezahat POSHOROĞLU** 01/01/1969 Ankara	Sevgi KARADUMAN
52.	64081/10	24/09/2010	**Mehmet GÜMÜŞ** 10/02/1960 Ankara	Sevgi KARADUMAN
53.	64133/10	24/09/2010	**Nurhayat YAKUT** 10/09/1973 Ankara	Sevgi KARADUMAN
54.	64690/10	04/10/2010	**Erdal BOZKURT** 10/06/1968 Ankara	Sevgi KARADUMAN
55.	64696/10	04/10/2010	**Sinan Yılmaz DOĞAN** 26/07/1979 Ankara	Sevgi KARADUMAN
56.	64702/10	04/10/2010	**Cemal ATEŞ** 22/03/1970 Ankara	Sevgi KARADUMAN
57.	69678/10	08/10/2010	**Ali CEVHER** 01/02/1967 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
58.	70715/10	08/10/2010	**Mesut YAHŞİ** 30/06/1976 Ankara	Sevgi KARADUMAN
59.	70758/10	04/10/2010	**Ercan BAYDAR** 16/01/1963 Ankara	Sevgi KARADUMAN
60.	70768/10	04/10/2010	**Mehmet SAÇINTI** 26/02/1962 Ankara	Sevgi KARADUMAN
61.	74029/10	24/09/2010	**Saniye SEZER** 01/03/1963 Ankara	Sevgi KARADUMAN
62.	74051/10	30/09/2010	**Ergin KUDU** 22/05/1960 Ankara	Sevgi KARADUMAN
63.	74063/10	30/09/2010	**Feriha YAMAN** 15/07/1961 Ankara	Sevgi KARADUMAN
64.	74143/10	04/10/2010	**Mahmut EROĞLU** 08/03/1964 Ankara	Sevgi KARADUMAN
65.	74146/10	04/10/2010	**İlkber PEKACAR** 19/09/1970 Ankara	Sevgi KARADUMAN
66.	74160/10	04/10/2010	**Huriye ŞAHİN** 19/10/1974 Ankara **Gülçin KILIÇ** 16/04/1972 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
			Hakverdi YILMAZ 01/04/1973 Ankara **Züleyha GÜNALTAY** 12/03/1968 Ankara **Nesrin OĞUZ** 01/01/1969 Ankara	
67.	74940/10	17/09/2010	**Halil Atabey YÜKSEKLİ** 20/01/1961 Ankara **Yasemin ERDEM** 18/06/1961 Ankara **Alper Kağan GÖRGÜLÜ** 08/05/1975 Ankara **Hesna SOYLU** 09/09/1964 Ankara **Muharrem ERKILIÇ** 01/05/1962 Ankara	Sevgi KARADUMAN
68.	74990/10	30/09/2010	**Şükran BURUM** 10/07/1969 Ankara	Sevgi KARADUMAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
			Mesude AYDOĞAN 20/06/1970 Ankara **İlknur GÖKÇE** 22/11/1970 Ankara	
69.	2363/11	30/09/2010	**Şevket KAHRAMAN** 10/06/1954 Ankara	Sevgi KARADUMAN
70.	4004/11	24/09/2010	**Nurhan KUL** 08/09/1962 Ankara	Sevgi KARADUMAN